

Court No. - 40

Case :- WRIT - C No. - 5061 of 2023

Petitioner :- Laxmi Narayan

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Mohd. Ayub

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Gaurav Tripathi

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

Heard learned counsel for the petitioner; learned Standing Counsel for the State respondents and Sri Baleshwar Chaturvedi, learned counsel for respondent no.5.

By means of this writ petition the petitioners have sought following reliefs:-

"(i) Issue a writ, order or direction in the nature of certiorari to quash the impugned demand notice dated 15.12.2022 issued by the respondent no.4 as well as impugned recovery citation dated 19.12.2022 issued by the respondent no.3, requiring the petitioner to pay an amount of Rs.681410.00;

(ii) Issue a writ, order or direction in the nature of certiorari to entire recovery proceeding initiated pursuant to recovery citation dated 19.12.2022 issued against the petitioner in respect of the electricity connection no.674348223;

(iii) Issue a writ, order or direction in the nature of mandamus commanding the respondents not to take any coercive measure against the petitioner for realization of the impugned amount shown in the recovery citation;

(iv) Issue a writ, order or direction in the nature of mandamus commanding the respondent authorities to restore the electricity connection of the petitioner having Electricity Connection No.674348223."

Sri Baleshwar Chaturvedi, learned counsel for the respondent no.5 has raised a preliminary objection regarding maintainability of the present writ petition on the ground that the petitioner is also agitating his grievance before the Consumer Forum. Moreover, against the impugned demand notice the petitioner has got efficacious alternative remedy to make a representation under Clause 6.5 of U.P. Electricity Supply Code, 2005 before the Executive Engineer, and as such, the writ petition is liable to be dismissed on the ground of alternative remedy.

We have proceeded to examine the record in question and find that once against the impugned order efficacious alternative remedy is available to the petitioner, then there is no reason or occasion to entertain the writ petition.

Consequently, the writ petition is dismissed on the ground of alternative remedy.

Order Date :- 14.2.2023
RKP